

25STCV17256 25STCV17256

County: los-angeles

Division: Civil Law and Motion

Department: 510

Hearing date: 2026-07-21

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Case Number: 25STCV17256 Hearing Date: July 21, 2026 Dept: 510

No.

12 - Vahik Arzoomanian v. Aqua Masters, Inc., et al.

Defendants'

Two Motions to Compel Further Responses to Requests for Production

Defendants

Aqua Masters, Inc. and American Contractors Indemnity Company move to compel Plaintiff Vahik Arzoomanian ("Arzoomanian") and Cross-Defendant Hagop Yacooubian ("Yacooubian") to provide further responses to requests for production.

As

an initial matter, the Court notes that Defendants make two different requests in their motions. First, they request the Court compel the parties to comply with their verified responses for request nos. 1 and 2. Second, they request the Court compel the parties to provide further responses to request nos. 5-7. As this motion is titled "Motion to Compel Further Responses," and Defendants move under CCP §2031.310, the Court will only address Defendants' second request for relief. A motion to compel further responses under section 2031.310 is not the proper means to compel production of documents. Instead, Plaintiff must compel compliance "in accordance with [defendant's] statement of compliance" under section 2031.320, subdivision (a).

Timeliness

These motions are timely. Under Code of Civil Procedure section 2031.310(c), "Unless notice of this motion is given within 45 days of the service of the verified response, or any supplemental

verified response, or on or before any specific later date to which the demanding party and the responding party have agreed in writing, the demanding party waives any right to compel a further response to the demand." Arzoomanian and Yacooubian served their verified discovery responses on March 30, 2026. (Matthews Decls., Ex. C.) Defendants' motions to compel further responses needed to be served 45 calendar days after receipt of the verified responses, on May 14, 2026. However, two extra court days are added due to electronic service (CCP § 1010.6(a)(3)(B)). These motions were thus timely served via email on May 18, 2026.

Further Responses

Defendants

are entitled to further responses to request nos. 5-7. A party demanding inspection of documents may move to compel further responses if "[a] statement of compliance with the demand is incomplete," "[a] representation of inability to comply is inadequate, incomplete, or evasive," or "[a]n objection in the response is without merit or too general." (Code Civ. Proc., § 2031.310, subd. (a).)

After this motion was filed, Arzoomanian and Yacooubian served further responses. (Gilanians Decls., Ex. A.) However, the further responses are not code-compliant. To request nos. 5-7, Arzoomanian and Yacooubian simply wrote: "See [Exhibits], attached hereto." Code of Civil Procedure section 2031.220 provides, "A statement that the party to whom a demand for inspection, copying, testing, or sampling has been directed will comply with the particular demand shall state that the production, inspection, copying, testing, or sampling, and related activity demanded, will be allowed either in whole or in part, and that all documents or things in the demanded category that are in the possession, custody, or control of that party and to which no objection is being made will be included in the production."

These

responses do not specify Arzoomanian and Yacooubian would produce "all" responsive documents in their possession, custody, or control. A statement of compliance in whole must use the word "all" because it states under oath not only that the responding party will produce some documents, but also that the responding party is not withholding any responsive documents. To the extent they intended to make only partial statements of compliance or are withholding

documents, the responses are evasive and do not identify any documents withheld subject to objections, as is required. (Code Civ. Proc., § 2031.240, subd. (b)(1).)

Sanctions

Defendants move for \$5,775 in sanctions against Arzoomanian and Yacooubian and their counsel of record. “[T]he court shall impose a monetary sanction ... against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel further response to a demand, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” (CCP § 2031.310(h).)

Arzoomanian and Yacooubian did not act with substantial justification. They did not respond to meet and confer efforts and provided evasive responses to discovery requests after the motions were filed.

However, Defendants did not reasonably incur \$5,775 in expenses for 11 hours of work at a rate of \$520 per hour. (Matthews Decl., ¶ 10.) The Court exercises its discretion not to award fees for the 0.5 hours spent meeting and conferring. The Court will reduce the total hours requested for time spent drafting the motions and reply briefs by 50%. These motions were straightforward, and the reply brief was only 2.5 pages long. 9 hours reduced by 50% is 4.5 hours. The Court will award 1.0 hour for attending the hearing. The Court will award fees at a rate of \$520 per hour. Thus, Defendants reasonably incurred a total of \$2,850 in attorney fees (5.5 hours at \$520 per hour).

Disposition

Defendants Aqua Masters, Inc. and American Contractors Indemnity Company's motions to compel Plaintiff Vahik Arzoomanian and Cross-Defendant Hagop Yacooubian to provide further responses to requests for production are granted. Arzoomanian and Yacooubian are ordered to serve verified code-compliant responses without objections to request nos. 5-7 within 21 days.

Plaintiff

Vahik Arzoomanian and Cross-Defendant Hagop Yacooubian are ordered,
jointly and severally, to pay Defendants Aqua
Masters, Inc. and American Contractors Indemnity Company \$2,850 in sanctions within 21 days.